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Decision following supervision according to the

Data Protection Regulation – Dagens

Industri Aktiebolag's transfer of

personal data to third countries

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Decision of the Swedish Authority for Privacy Protection

The Swedish Authority for Privacy Protection finds that Dagens Industri Aktiebolag processes personal data in violation of Article 44 of the General Data Protection Regulation (GDPR) by using the tool Google Analytics, provided by Google LLC, on its website www.di.se since August 14, 2020, and thereby transferring personal data to a third country without meeting the conditions set out in Chapter V of the Regulation.

The Swedish Authority for Privacy Protection orders Dagens Industri Aktiebolag, pursuant to Article 58.2 d of the GDPR, to ensure that the company's processing of personal data in connection with Dagens Industri's use of the tool Google Analytics complies with Article 44 and other provisions of Chapter V. This shall particularly be done by Dagens Industri Aktiebolag ceasing to use the version of the tool Google Analytics that was used on August 14, 2020, unless sufficient protective measures have been implemented. The measures must be completed no later than one month after this decision has become final.

1 Account of the supervisory case

1.1 Processing

The Swedish Authority for Privacy Protection (IMY) has initiated supervision regarding Dagens Industri Aktiebolag (hereinafter "Dagens Industri" or "the company") due to a complaint. The complaint concerns an alleged violation of the provisions of Chapter V of the GDPR related to the transfer of the complainant's personal data to a third country. The transfer is alleged to have occurred when the complainant visited the company's website, www.di.se (hereinafter "the company's website" or "the Website") through the tool Google Analytics (hereinafter "the Tool") provided by Google LLC.

The complaint has been forwarded to IMY, as the responsible supervisory authority according to Article 56 of the GDPR. The transfer has occurred from the supervisory authority in the country where the complainant submitted their complaint (Austria) in accordance with the Regulation's provisions on cooperation in cross-border processing.

The processing at IMY has taken place through written correspondence. Given that this concerns cross-border processing, IMY has utilized the mechanisms for cooperation and consistency found in Chapter VII of the GDPR. The relevant supervisory authorities have been those in Germany, Norway, Denmark, Estonia, and Portugal.

1.2 What is stated in the complaint

The complaint mainly states the following:

On August 14, 2020, the complainant visited Dagens Industri's website. During the visit, the complainant was logged into their Google account, which is linked to the complainant's email address. The company had implemented a Javascript code for Google's services, including Google Analytics, on its website. In accordance with point 5.1.1 b of the terms for

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Google's processing of personal data for Google's advertising products and also Google's terms for processing "the New Order Data Processing Conditions for Google Advertising Products" involve Google processing personal data on behalf of the data controller (i.e., the company). Google LLC shall therefore be classified as the company's data processor according to the aforementioned terms.

During the complainant's visit to the company's website, the complainant's personal data was processed by Dagens Industri, at least the complainant's IP address and data collected through cookies. Some of the data collected was transferred directly to Google. In accordance with point 10 of the terms regarding the processing of personal data for Google's advertising products, Dagens Industri has consented to Google processing personal data about the complainant in the USA. Such transfer of data requires legal support in accordance with Chapter V of the General Data Protection Regulation.

According to the Court of Justice of the European Union's ruling in Facebook Ireland and Schrems (Schrems II)², the company could no longer rely on a decision regarding adequate protection level for the transfer of data to the USA under Article 45 of the General Data Protection Regulation. The company should not base the transfer of data on standard contractual clauses under Article 46.2 c of the General Data Protection Regulation if the receiving country does not ensure an appropriate level of protection with regard to Union law for the personal data being transferred.

Google shall be classified as a provider of electronic communication services in the sense referred to in 50 US Code § 1881 (4)(b) and is thus subject to surveillance by American intelligence services in accordance with 50 US § 1881a (section 702 of the Foreign Intelligence Surveillance Act, hereinafter "702 FISA").³ Google provides the American government with personal data in accordance with these provisions. The company therefore cannot ensure an appropriate level of protection for the complainant's personal data when it is transferred to Google.

1.3 What Dagens Industri has stated

Dagens Industri Aktiebolag has essentially stated the following.

1.3.1 Who has implemented the Tool and for what purpose, etc.

Dagens Industri has made the decision to implement the Tool on the Website, which has been done by embedding the code for the Tool on the Website. The Tool is still active. The company is established in Sweden and has not made such a decision for any other European website.

The purpose of embedding the code for the Tool on the Website is for Dagens Industri to analyze how the Website is used, particularly to be able to track the usage of the Website over time.

The Website is aimed at Swedish visitors, but it cannot be ruled out that individuals from other countries have visited the Website and thus may be included in the statistics.

² Court of Justice of the European Union's ruling in Facebook Ireland and Schrems (Schrems II), C-311/18, EU:C:2020:559.

³ See <https://www.govinfo.gov/content/pkg/USCODE-2011-title50/html/USCODE-2011-title50-chap36-subchapVI-sec1881.htm> and <https://www.govinfo.gov/content/pkg/USCODE-2011-title50/html/USCODE-2011-title50-chap36-subchapVI-sec1881a.htm>.

The data (including any personal data) that is transferred to the Tool may be stored on servers in various countries, including the USA. As a user of the Tool, it is not possible to control which servers are used to store data in the Tool.

1.3.2 Recipients of the data

In the context of Dagens Industri's use of the Tool on the Website, personal data is disclosed to a number of actors, all of whom are data processors or sub-processors for Dagens Industri, including Google LLC, Google Ireland Ltd, and their sub-processors.

1.3.3 The data processed in the Tool and what constitutes personal data

In the context of Dagens Industri's use of the Tool on the Website, the company and its data processors (the Recipients) process the data specified below.

-

Page view data – for example, URL, clicks in menus, articles visited, reading time, and how long the visitor watches a video.

-

Technical information about the device – for example, cookie value (which is hashed before being transferred to the Tool, but was not hashed when the complainant visited the Website), operating system, and screen size.

-

User category – for example, a flag indicating whether the visitor is a subscriber or not.⁴

-

So-called "custom dimensions" – for example, which version of the publishing platform a page view occurred on, information about the article (e.g., author).

-

IP addresses – the IP address is processed both when the Google Analytics measurement script is loaded and when the measured data is to be transferred to the Tool. The IP address processed together with the measured data (page view data, etc.) is anonymized through the company's own developed process and is handled on an EU-based infrastructure before being sent along with the measured data to the Tool (see more about this below).

Dagens Industri assesses that the categories Page view data, Technical information about the device, User category, and "custom dimensions" can be considered personal data only in cases where the company can link this data to an individual through supplementary information that the company has in other systems, which is not always the case. Dagens Industri considers IP addresses to be personal data until they are anonymized.

1.3.4 Categories of persons affected by the processing

The categories of persons affected by the processing are visitors to the Website. This may include Dagens Industri's paying subscribers or visitors without a digital account.

Data concerning particularly vulnerable individuals is not processed. The Website primarily targets adults in their professional roles or those with an interest in economic and business issues. It is not aimed at children or other particularly vulnerable groups.

1.3.5 When the code for the Tool is executed and recipients are granted access

The code for the Tool's content, i.e., the script that measures the data sent to the Tool, runs only if the visitor has given their consent to Dagens Industri

⁴ Please note that identifying information such as actual subscription ID is not transferred, but only a value representing the category "subscriber" or "not a subscriber" (1 or 0).

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uses analysis cookies on the Website. If the visitor has given their consent, the data measured by the script will first be sent to Dagens Industri's proxy server, where several security-enhancing measures are implemented, such as anonymization of the IP address. A subset of the measured data is then transferred encrypted from the proxy server to the Tool provided by Google (see below).

Google LLC, Google Ireland, and other data processors and sub-processors have access to the pseudonymized data stored in the Tool to the extent necessary for the data processor or sub-processor to perform the service, including support and troubleshooting services.

1.3.6 How long the personal data is stored

The data measured on the Website and transferred to the Tool is stored in the Tool for 26 months and is then deleted. Dagens Industri retains the data to analyze the usage of the Website over time, specifically to make year-on-year comparisons and thereby analyze how usage changes. Dagens Industri has assessed that it is necessary to be able to compare usage over two annual cycles. To analyze and produce statistics on these changes, the company needs to retain the measured data for 26 months.

1.3.7 Which countries the personal data is processed in

The data transferred to the Tool is stored, among other places, in the USA.

1.3.8 Dagens Industri's relationship with Google LLC

The Tool is provided through an agreement between Dagens Industri and a Swedish limited company (hereinafter "the Supplier"). Google Ireland Ltd is in turn a sub-supplier to the Supplier. Dagens Industri has entered into a data processing agreement with the Supplier, which regulates the Supplier's and its sub-processors' processing of personal data.

Since the purposes and means of the processing are determined entirely by Dagens Industri, Google LLC and Google Ireland Ltd are data processors for the personal data processing that is relevant in relation to the Tool.

Dagens Industri has also entered into a data processing agreement directly with Google LLC to meet the formal requirements according to the standard contractual clauses, i.e., that these must be formally entered into directly between the data controller and the processor in a third country.

1.3.9 Ensuring that the processing does not occur for the recipients' own purposes

1.3.9.1 General

Dagens Industri is committed to only engaging suppliers that can meet the company's high standards for secure and lawful processing of personal data. Before selecting a particular supplier, an assessment is made of the supplier's ability to maintain an acceptable level of security, including protecting personal data that is to be processed. Dagens Industri has also developed an audit plan where the company intends to conduct audits of the most important suppliers, based on a rolling schedule. Dagens Industri also maintains a continuous dialogue with Google, where security and data protection issues are discussed.

1.3.9.2 Agreement with the Supplier

Through the processing agreement with the Supplier and the documented instructions provided by Dagens Industri in this regard, it has been contractually ensured that the Supplier and its sub-processors do not process personal data for their own or

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third-party purposes. The Data Processing Agreement thus contains specific provisions (section 3.2.1) stating that the Supplier may only process personal data in accordance with Dagens Industri's documented instructions. Appendix 2 to the Data Processing Agreement clarifies that the Supplier has no right under any circumstances to process personal data for its own purposes.

As an incentive to comply with the requirements set forth in the Data Processing Agreement and to

emphasize its importance, the Supplier has a liability to Dagens Industri if the Supplier were to breach the agreement or applicable data protection legislation, resulting in damage to Dagens Industri. The Data Processing Agreement with the Supplier also enables Dagens Industri to request documentation and conduct audits of systems and procedures to ensure that processing occurs in accordance with Dagens Industri's documented instructions and applicable data protection legislation. In the event that Dagens Industri has reason to believe that the Supplier is not complying with the requirements set forth in the Data Processing Agreement, Dagens Industri intends to conduct such an audit. The Supplier also has the right to request documentation and conduct audits in relation to Google (section 7.5 of Google's Data Processing Agreement).

Dagens Industri may also request to conduct an audit of Google's systems and procedures in accordance with the Data Processing Agreement with the Supplier (section 8.5).

1.3.10 Description of Dagens Industri's use of the Tool

Dagens Industri uses the Tool to collect quantitative data, web statistics, on how the Website is used, and to perform analyses based on this data.

Web statistics can, for example, show which pages are the most visited, the path visitors take through the Website, and from which pages visitors leave the Website. Web analytics can also provide insights into visit frequency and which content is visited for the longest time. The analysis conducted using the Tool can, for example, serve as a basis for product improvements.

1.3.11 Own controls of transfers affected by the Schrems II ruling

After the Schrems II ruling was published on July 16, 2020, Dagens Industri initiated a project at the end of July 2020 to generally map transfers of personal data to third countries. The project did not specifically concern the Tool but addressed third country transfers in general. In connection with Dagens Industri becoming aware of, among other things, the relevant complaint, a project specifically concerning the use of the Tool was initiated on August 18, 2020. Relatively soon after the ruling, the company could ascertain that it is relevant to the data transfer occurring within the framework of the Tool, and Dagens Industri has since taken relevant protective measures, see below.

1.3.12 Transfer tools according to Chapter V of the Data Protection Regulation

Dagens Industri has entered into a Data Processing Agreement directly with Google LLC.

Google's standard contractual clauses are part of the Data Processing Agreement. The Data Processing Agreement states that Google is bound by the clauses (point 10.2). The clauses are based on the Commission's decision 2010/87/EU for transfers from a data controller within the EU/EEA to a data processor outside the EU/EEA. These contractual terms automatically apply upon entering into Google's Data Processing Agreement and therefore do not need to be signed separately to be applicable. It is stated in the preamble to Google's standard contractual clauses. According to Swedish law, which shall apply to the standard contractual clauses, this means that they become part of the agreement.

Google's standard contractual clauses also form part of the Data Processing Agreement with the Supplier in accordance with Appendix 2 of the Data Processing Agreement with the Supplier.

Dagens Industri has also entered into a Data Processing Agreement with the Supplier, where Google Ireland Ltd acts as a sub-processor and which in turn has certain sub-processors in third countries.

Google's standard contractual clauses are also applied as transfer tools in this agreement.

1.3.13 Control of obstacles to compliance in legislation in third countries

Dagens Industri has not yet been able to ascertain with certainty whether there is anything in third country legislation that prohibits recipients from fulfilling their contractual obligations under the standard contractual clauses. The company has therefore, as a precautionary measure, assumed that this is the case and has taken specific technical protective measures to ensure that the protection for the data processed in the Tool reaches an acceptable level.

1.3.14 Additional protective measures taken beyond those implemented by Google

1.3.14.1 Introduction

Dagens Industri has conducted a thorough mapping of the lifecycle of personal data processed in the Tool, and has identified and implemented a number of additional protective measures. The measures are visually summarized in the image below and are further commented on in the subsequent sections.

1.3.14.2 Control over the collection and transfer of data to the Tool

A common way to use the Tool, unless additional protective measures are taken, involves the data measured via the Website's measurement script being transferred directly to the Tool's servers, without first going through a control point at the data controller using the tool.

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Since the servers of the Tool may be located within and outside the EU/EEA, the use of the Tool may lead to measured data being transferred to third countries. The Tool includes a feature that allows users of the Tool to choose to anonymize the IP address (truncation)⁵ that is transmitted along with the measured data. Since the anonymization occurs only after the IP address has been transmitted to Google Analytics servers, a transfer to a third country occurs before the anonymization takes place, according to Dagens Industri. Dagens Industri has implemented protective measures before data is transferred to the Tool. To control which data is transferred to the Tool's servers outside the EU/EEA, the company has implemented technical measures whereby the data collected via the Google Analytics measurement script on the Website is initially transferred to a proxy server located within the EU, where the data is processed to prevent it from being used to identify an individual thereafter. The software used has been developed and is owned by Dagens Industri, and is hosted by Google Ireland Ltd as part of the Google Cloud Platform ("GCP"). The GCP is thus used solely as rented infrastructure to run the code of the proxy server. The data processed on the GCP occurs exclusively in data centers within the EU. Dagens Industri is the data controller for the processing that takes place on the proxy server.

By implementing this control point, Dagens Industri can ensure that no data is transferred to servers outside the EU/EEA without first undergoing protective measures (see further below). The transfer to the proxy server is encrypted with Secure Sockets Layer ("SSL"), a technology that enables encrypted communication between a browser and a server).

1.3.14.3 Anonymization of IP Address and Algorithm

The data that can, in some cases, be linked to an individual and that is transferred from the Website to the proxy server includes the IP address and cookie value. The examples below illustrate how these numbers may appear before and after being processed on the proxy server.

Before processing on the proxy server:

Data

- IP address: clear text, e.g., 176.10.253.34
- Cookie value: clear text, e.g., 744100309.1604572939

Before the measured data is transferred to the Tool, the following is performed on the proxy server:

- Anonymization of IP address. The visitor's IP address is anonymized through generalization and aggregation, where the last octet of the IPv4 address is replaced with ".0".
- Hashing of the cookie value. The cookie value measured on the Website can either be completely anonymous (when the company cannot link the cookie value to data in its other systems) or constitute a pseudonymized personal data (when the company can link the cookie value to data in its other systems). As an additional protective measure before the transfer to the Tool, the cookie value from the visitor's client is hashed with a "salt".⁶ The hashing of the cookie value provides an additional layer of protection against

⁵ Truncation of the IP address means that asterisks or zeros replace other numbers in the last octets (the last numbers in an IP address, a number between 0 and 255).

⁶ Cf. information on "Keyed-hash function with stored key" in the Article 29 Working Party's guidelines on anonymization techniques.

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the risk that U.S. authorities may link "intercepted data" (i.e., data that could potentially be read through signals intelligence programs either "at rest" in the Tool or "in transfer") with identifying data that U.S. authorities may potentially gain access to in other ways.

After the measures described above have been implemented, the IP address and cookie value may, for example, appear as follows:

Data

-

IP address: anonymized, e.g., 176.10.253.00

-

Cookie value: hashed, e.g., 35009a79-1a05-49d7-b876-2b884d0f825b

The transfer of the data then occurs via SSL encryption from the proxy server to the Tool.

Anonymization of the visitor's IP address occurs when it is to be transferred along with the measured page view data, etc. (see above for which data points are measured).

Prior to this, the IP address has been exposed to the Tool at the time the Google Analytics measurement script was loaded into the visitor's browser from the Tool's server via encrypted transfer. It is not possible to link the IP address with the page view data, etc., that is measured at a later time on the Website. Dagens Industri has therefore assessed that this exposure of the IP address does not pose any privacy risk for visitors to the Website.

Regarding the timing of visits to the Website, Google LLC can indeed indirectly derive the timing of the visit, but this possibility is very limited. Google has configured the server from which 'analytics.js' is provided in such a way that the JavaScript file is cached in the receiving terminal's application cache for two hours, regardless of which website it was first retrieved from (i.e., not necessarily from the Website).

During this time period, no further calls are made where the IP address is fully exposed, which means that the measured page view data transferred via Dagens Industri's proxy server to Google LLC (first transfer) very rarely has a temporally corresponding machine log at Google LLC linked to the transfer via 'analytics.js' (second transfer). In combination with the fact that visitors most often use the Website as an information source in their work and/or have visited another website using Google Analytics in the previous two hours (most likely given that approximately 74% of the world's 10,000 most popular websites are involved), a large proportion of visits to the Website only result in transferred page view data from Dagens Industri's proxy server and no loading of the Tool with the associated transfer of the IP address. Thus, any attempts to link machine logs from the transfer of the Tool and the transferred page view data from Dagens Industri's proxy server are significantly hampered, reducing the risk according to Dagens Industri to beyond "reasonable probability."

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1.3.14.4 More on the control of whether additional measures can be implemented in practice, etc. Dagens Industri's considerations regarding the measures that the company has implemented are based on the EDPB's recommendations on how individual transfers to third countries should be assessed based on their specific legal context (point 33).⁷

The security-enhancing measures primarily consist of the responsibility for and control that Dagens Industri has taken over the phases of the lifecycle before the transfer of data occurs to the Tool. The risk assessment has been based on the premise that the protection of the data subjects is best achieved by ensuring that the data transferred outside the EU/EEA is disconnected from the data subject and their technical device used to visit the Website, and that the company controls the process that ensures these measures are implemented.

1.3.14.5 Dagens Industri's conclusion on sufficient security protection level

Considering the measures implemented, Dagens Industri assesses that the risk of the data subjects' privacy or rights being infringed through the use of the Tool is very low. The company's overall assessment is thus that a sufficient level of protection is achieved through the measures implemented.

1.3.15 Dagens Industri's assessment and conclusion regarding whether the data can be considered identifiable

1.3.15.1 The company's assessment regarding whether the data can be considered identifiable
Dagens Industri believes that it is not obvious that an assessment leads to the conclusion that the data in question – IP address, certain system information, and visited web address – constitutes personal data.

Recital 26 of the General Data Protection Regulation states, among other things:

“To determine whether a natural person is identifiable, all means, such as pseudonymization, that may reasonably be used by the data controller or by another person to identify the natural person, either directly or indirectly, should be taken into account. In order to ascertain whether means are likely to identify the natural person, all objective factors, such as costs and time required for identification, should be considered, taking into account the available technology at the time of processing and the technological developments.”

The Article 29 Working Party has further specified in its guidance⁸ on the concept of personal data how the assessment should be conducted:

Recital 26 of Directive 95/46 (repealed) pays particular attention to the term “identifiable” when it states that “to determine whether a person is identifiable, account should be taken of all means that may reasonably be used either by the data controller or by any other person to identify the person.” This means that a purely hypothetical possibility of identifying the individual is not sufficient to consider the person as “identifiable.” If this possibility, taking into account “all means that may reasonably be used by the data controller or any other person,” does not exist or is negligible, the person should not be considered “identifiable,” and the information would not be regarded as “personal data.” The criterion “all means that

7 EDPB's Recommendations 01/2020 on measures complementing transfer tools to ensure compliance with the EU level of data protection Version 2.0 Adopted on June 18, 2021

8 WP 136. Article 29 Group's Opinion 4/2007 on the concept of personal data, adopted on June 20, 2007

9 Directive 95/46/EC of the European Parliament and of the Council of October 24, 1995, on the protection of individuals with regard to the processing of personal data and on the free movement of such data.

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"reasonably may be used either by the data controller or by another person" should particularly take into account all factors at stake. The cost of implementing identification is one factor, but not the only one. If the data is intended to be stored for a month, identification cannot be expected to be possible during the information's "lifetime," and it should not be considered personal data.¹⁰ Furthermore, the following is stated in the guidance:

"A relevant factor, as mentioned earlier, for assessing 'all means that can reasonably be expected to be used' to identify individuals will in fact be the purpose that the data controller pursues in the processing of data."¹¹

1.3.15.2 The Company's Conclusion Regarding Whether the Data Can Be Considered Identifiable

Dagens Industri has concluded that for data to be considered personal data under the General Data Protection Regulation, the assessment of whether individuals are identifiable must be based on all

relevant circumstances and assess the reasonable likelihood of identification, of which the purpose of the processing is a circumstance. Since the purpose of the processing is not to identify individuals, technical safeguards constitute an extra important factor in the assessment of whether individuals may be identified.

In this context, Dagens Industri concludes that it is not obvious that an assessment in accordance with the Article 29 Working Party's guidance leads to the data in question – IP address, certain system information, and visited web address – constituting personal data.

The assessment that individuals are not identifiable has been made with consideration of the circumstances that appear, namely (i) the cost of identification, (ii) the purpose of the processing, (iii) how the processing is structured, (iv) the benefits that the data controller expects from the processing, (v) what interests are at stake for the individual, and (vi) the duration of the processing. The purpose of the processing is not to identify individuals, but constitutes technical safeguards. According to Dagens Industri, it is not at all obvious that an assessment in accordance with the guidance leads to the data in question – IP address, certain system information, and visited web address – constituting personal data.

1.4 What Google LLC Has Stated

IMY has added to the case a statement from Google LLC (Google) dated April 9, 2021, which Google submitted to the Austrian supervisory authority. The statement addresses questions that IMY and a number of supervisory authorities have posed to Google regarding the partially joint handling of similar complaints that have been received by these authorities. Dagens Industri has been given the opportunity to comment on Google LLC's statement. The following is stated in Google LLC's statement regarding the Tool.

A JavaScript code is included on a webpage. When a user visits (calls) a webpage, the code triggers a download of a JavaScript file. Thereafter, the tracking operation for the Tool is performed, which consists of collecting information related to the call in various ways and sending the information to the Tool's servers.

10 WP 136. Article 29 Working Party's Opinion 4/2007 on the Concept of Personal Data, adopted on June 20, 2007, page 15.

11 WP 136. Article 29 Working Party's Opinion 4/2007 on the Concept of Personal Data, adopted on June 20, 2007, pages 16 and 17.

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A website administrator who has integrated the Tool on their website can send instructions to Google for processing the data collected. These instructions are transmitted via the so-called tag manager, which manages the tracking code that the website administrator has integrated into their website and through the settings of the tag manager. The person who has integrated the Tool can make various settings, for example regarding storage duration. The Tool also allows the integrator to monitor and maintain the stability of their website, for instance by staying informed about events such as spikes in visitor traffic or lack of traffic. The Tool also enables a website administrator to measure and optimize the effectiveness of advertising campaigns conducted using other tools from Google.

In this context, the Tool collects the visitor's HTTP requests and information about, among other things, the visitor's browser and operating system. According to Google, an HTTP request for any page contains information about the browser and the device making the request, such as domain name, and information about the browser, such as type, referrer, and language. The Tool stores and reads cookies in the visitor's browser to evaluate the visitor's session and other information about the request. Through these cookies, the Tool enables the identification of unique users (UUID) across browsing sessions, but the Tool cannot identify unique users across different browsers or devices. If a website owner's website has its own authentication system, the website owner can use the ID function

to more accurately identify a user across all devices and browsers they use to access the website. When the information is collected, it is transmitted to the Tool's servers. All data collected via the Tool is stored in the USA.

Google has implemented, among other things, the legal, organizational, and technical safeguards listed below to regulate the transfer of data within the framework of the Tool.

Google has taken legal and organizational safeguards such as ensuring that the company always conducts a thorough examination of whether a request for access from government authorities regarding user data can be fulfilled. It is lawyers/specially trained personnel who carry out these examinations and investigate whether such a request is consistent with applicable laws and Google's guidelines. The registered individuals are informed about the disclosure, unless prohibited by law or if it would negatively impact an emergency situation. Google has also published a policy on the company's website regarding how such requests for access from government authorities for user data should be conducted.

Google has implemented technical safeguards such as protecting personal data from eavesdropping during data transmission in the Tool. By default, using HTTP Strict Transport Security (HSTS), which instructs browsers to switch from HTTP to SSL (HTTPS) to use an encryption protocol for all communication between end users, websites, and the Tool's servers. Such encryption prevents intruders from passively eavesdropping on communication between websites and users.

Google also employs an encryption technique to protect personal data known as "data at rest" in data centers, where user data is stored on a disk or backup media to prevent unauthorized access to the data.

In addition to the above measures, website owners can use IP anonymization by utilizing the settings provided by the Tool to limit Google's use of personal data. Such settings primarily include in the code Page 13 of 27

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for the Tool to activate IP anonymization, which means that IP addresses are truncated and contribute to data minimization. If the IP anonymization service is used fully, the anonymization of the IP address occurs almost immediately after the request has been received.

Google also restricts access to the data from the Tool through access control and by ensuring that all staff have undergone training regarding information security.

2 Justification of the Decision

2.1 Framework for the Review

The Swedish Authority for Privacy Protection (IMY) has, based on the complaint in the case, only reviewed whether Dagens Industri transfers personal data to the third country USA within the framework of the Tool and whether the company has legal support for this in Chapter V of the General Data Protection Regulation (GDPR). The supervision does not cover whether the company's processing of personal data is otherwise compliant with the GDPR.

2.2 It Concerns the Processing of Personal Data

2.2.1 Applicable Provisions, etc.

For the GDPR to be applicable, personal data must be processed.

According to Article 1.2, the GDPR aims to protect the fundamental rights and freedoms of natural persons, particularly their right to the protection of personal data. According to Article 4.1 of the GDPR, personal data is "any information relating to an identified or identifiable natural person (hereinafter referred to as a data subject), where an identifiable natural person is one who can be identified, directly or indirectly, particularly by reference to an identifier such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person." To determine whether a natural person is identifiable, all means that may reasonably be used, either by the data controller or by another person,

to directly or indirectly identify the natural person should be considered (Recital 26 of the GDPR). The concept of personal data can encompass all information, both objective and subjective, provided that it "relates to" a specific person, which it does if, due to its content, purpose, or effect, it is linked to the person.¹² The word "indirect" in Article 4.1 of the GDPR suggests that it is not necessary for the information itself to enable the identification of the data subject for it to be considered personal data.¹³ Furthermore, Recital 26 of the GDPR states that to determine whether a natural person is identifiable, all means, such as singling out, which may reasonably be used, either by the data controller or by another person, to directly or indirectly identify the natural person should be taken into account. To establish whether means can reasonably be used...

12 Court of Justice of the European Union ruling Nowak, C-434/16, EU:C:2017:994, paragraphs 34–35.

13 Court of Justice of the European Union ruling Breyer, C-582/14, EU:C:2016:779, paragraph 41.

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The likelihood that may be used to identify the physical person should consider all objective factors, such as costs and time required for identification, taking into account both the available technology at the time of processing. Article 4.5 of the regulation states that pseudonymization refers to the processing of personal data in such a way that the personal data can no longer be attributed to a specific data subject without the use of additional information, provided that this additional information is kept separately and is subject to technical and organizational measures that ensure that the personal data cannot be attributed to an identified or identifiable natural person.

So-called "online identifiers" (sometimes referred to as "internet identifiers") – e.g., IP addresses or information stored in cookies – can be used to identify a user, especially when combined with other similar types of information. According to Recital 30 of the General Data Protection Regulation, natural persons can be linked to online identifiers provided by their equipment, such as IP addresses, cookies, or other identifiers. This can leave traces that, particularly in combination with unique identifiers and other data collected, can be used to create profiles of natural persons and identify them. The Article 29 Working Party clarified in its opinion from 2007 what it considers to be means that can reasonably be used for identification regarding, among other things, IP addresses. In the opinion, it is stated that all means that can reasonably be used to identify the individual include, among others, the cost of carrying out the identification, the intended purpose, how the processing is structured, and technical errors. On the other hand, consideration should be given to the latest technology at the time of processing and the development possibilities during the period when the data will be processed; thus, the factors are dynamic and may change over time.

The wording in Recital 26 of Directive 95/46 suggests, by referring to all means that can reasonably be used by the data controller or another person, that it is not required for a single person to hold all the information necessary to identify the data subject.

In the Article 29 Group's opinion from 2007, example number 15 states the following about dynamic IP addresses on a computer located at an internet café where no identification is required to use the internet: [O]ne can argue that the data collected regarding the use of computer X during a certain period does not allow for the identification of the user by reasonable means and that it is therefore not personal data.

The Court of Justice of the European Union has established in the Breyer judgment that a person is not considered identifiable through a certain piece of information if the risk of identification is practically negligible, which it is if the identification of the relevant person is prohibited by law or impossible to carry out in practice. However, the Court of Justice has established in the M.I.C.M. judgment from 2021 and in the Breyer judgment that dynamic IP addresses constitute personal data in relation to the entity processing them when that entity also has a legal means to identify the holders of the internet connections using additional information available from third parties.

14 Opinion 4/2007 on the concept of personal data, 01248/07/SV WP 136, page 16.

15 Judgment of the Court of Justice in Breyer, C-582/14, EU:C:2016:779, paragraph 43.

16 Opinion 4/2007 on the concept of personal data, 01248/07/SV WP 136, pages 17 and 18.

17 Judgment of the Court of Justice in Breyer, C-582/14, EU:C:2016:779, paragraphs 45–46.

18 Judgment of the Court of Justice in M.I.C.M, C-597/19, EU:C:2021:492, paragraphs 102–104 and judgment in Breyer, C-582/14, EU:C:2016:779, paragraph 49.

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2.2.2 Assessment by the Swedish Authority for Privacy Protection

To determine whether the data processed through the Tool constitutes personal data, the Swedish Authority for Privacy Protection (IMY) will assess whether Google or Dagens Industri, through the implementation of the Tool, can identify individuals, e.g., the complainant, during visits to the Website or whether the risk of that is negligible.¹⁹

IMY believes that the data being processed constitutes personal data for the following reasons.

The investigation shows that Dagens Industri has implemented the Tool by inserting a JavaScript code (a tag), provided by Google, into the source code of the Website. While the page loads in the visitor's browser, the JavaScript code is loaded from the servers of Google LLC and executed locally in the visitor's browser. A cookie is simultaneously set in the visitor's browser and saved on the computer. The cookie contains a text file that collects information about the visitor's navigation on the Website. Among other things, a unique identifier is established in the value of the cookie, and this unique identifier is generated and managed by Google.

When the complainant visited the Website, or a subpage of the Website, the following information was transmitted via the JavaScript code from the complainant's browser to the servers of Google LLC:

1. Unique identifier(s) that identified the browser or device used to visit the Website, as well as a unique identifier that identified the company (i.e., the company's account ID for Google Analytics).
2. Web address (URL) and HTML title of the website and webpage that the complainant visited.
3. Information about the browser, operating system, screen resolution, language settings, as well as the date and time of access to the Website.
4. The complainant's IP address.

During the complainant's visit, the aforementioned identifier (according to point 1 above) was set in cookies named “_gads,” “_ga,” and “_gid” and was subsequently transmitted to Google LLC. These identifiers have been created for the purpose of distinguishing individual visitors, such as the complainant. The unique identifiers thus make the visitors to the Website identifiable. Even if such unique identifiers (according to point 1 above) in themselves would not be considered to make individuals identifiable, it must be taken into account that these unique identifiers in the current case can be combined with additional elements (according to points 2–4 above) and that it is possible to draw conclusions regarding information (according to points 2–4 above) that results in data constituting personal data, regardless of whether the IP address has not been transmitted in its entirety.

Combining data (according to points 1–4 above) means that individual visitors to the Website become even more distinguishable. It is thus possible to identify individual visitors to the Website. This is in itself sufficient for it to be considered personal data. Knowledge of the actual visitor's name or physical address is not required, as the distinction (through the word "singling out" in Recital 26 of the General Data Protection Regulation) in itself is sufficient to make the visitor indirectly identifiable. It is also not required that Google or Dagens Industri intends to identify the complainant; rather, the possibility of doing so is in itself sufficient to determine whether it is possible to identify a visitor. Objective means that can reasonably be used either by the data controller or

¹⁹ See the Administrative Court of Appeal in Gothenburg's judgment on November 11, 2021, in case no. 2232-21, agreeing with the assessment of the lower court.

by someone else, are all means that can reasonably be used to identify the complainant. Examples of objective means that can reasonably be used include access to additional information from a third party that would make it possible to identify the complainant, taking into account both the available technology at the time of identification and the cost (time required) for the identification.

IMY notes that the Court of Justice of the European Union, through the judgment in M.I.C.M. and the judgment in Breyer, has established that dynamic IP addresses constitute personal data in relation to the entity processing them, when that entity also has a legal means to identify the holders of the internet connections using additional information available from third parties. IP addresses do not lose their character as personal data solely because the means of identification lie with a third party. The Breyer judgment and the M.I.C.M. judgment should be interpreted based on what is actually stated in the judgments, i.e., that if there is a legal possibility to access supplementary information for the purpose of identifying the complainant, it is objectively clear that there is a "means that can reasonably be used" to identify the complainant. According to IMY, the judgments should not be read in the opposite way, such that it must be demonstrated that there is a legally regulated possibility to access data that can link IP addresses to physical persons for the IP addresses to be considered personal data. An interpretation of the concept of personal data that requires a legal possibility to link such data to a physical person would, according to IMY, represent a significant limitation of the regulation's scope of protection and open up possibilities to circumvent the protection in the regulation. This interpretation would, among other things, contradict the purpose of the regulation according to Article 1.2 of the General Data Protection Regulation. The Breyer judgment was decided under the previously applicable Directive 95/46, and the concept of "singling out" according to Recital 26 of the current regulation (that knowledge of the actual visitor's name or physical address is not required, as the distinction itself is sufficient to make the visitor identifiable) was not stated in the previously applicable directive as a method for identifying personal data.

In this context, there are also other data (according to points 1–3 above) that the IP address can be combined with to enable identification. Even though the truncation of the last octet and "hashing" of the cookie value constitute privacy-enhancing measures, as they limit the extent of the data that authorities can access (in third countries), IMY notes that it is still possible to link the transmitted data to other data that is also transmitted to Google LLC (to the USA). This enables identification, which in itself is sufficient for the data together to constitute personal data.

IMY notes that there may also be reasons to compare IP addresses with pseudonymized personal data. Pseudonymization of personal data means, according to Article 4.5 of the General Data Protection Regulation, that the data – similar to dynamic IP addresses – cannot be directly attributed to a specific data subject without the use of supplementary data. According to Recital 26 of the General Data Protection Regulation, such data should be considered data about an identifiable physical person.

A narrower interpretation of the concept of personal data would, according to IMY, undermine the scope of the right to protection of personal data, which is guaranteed in Article 8 of the

20 Judgment of the Court of Justice of the European Union M.I.C.M, C-597/19, EU:C:2021:492, paragraphs 102–104 and judgment in Breyer, C-582/14 EU:C:2016:779, paragraph 49.

21 Truncation of an IP address means that asterisks or zeros replace other digits in the last octets (the last digits in an IP address, a number between 0 and 255), which in itself can only be one of 256 alternatives. The effect of this measure is that it is still possible to distinguish the IP address from the other IP addresses (255 alternatives), as the IP address can be linked to other transmitted data (e.g., information about the device and time of the visit) to a third country.

The Charter of Fundamental Rights of the European Union, as it would allow data controllers to specifically identify individuals along with personal data (e.g., when they visit a certain website) while denying individuals the right to protection against the dissemination of such data about them. Such an interpretation would undermine the level of protection for individuals and would not be consistent with the broad scope that data protection regulations have been given in the case law of the Court of Justice of the European Union.²²

Dagens Industri has also, by the fact that the complainant was logged into their Google account during the visit to the Website, processed data from which conclusions could be drawn about the individual based on their registration with Google. Google's statement indicates that the implementation of the Tool on a website allows for information to be obtained that a user of a Google account (i.e., a registered user) has visited the website in question. Google does state that certain conditions must be met for Google to receive such information, e.g., that the user (the complainant) has not disabled processing for and display of personalized ads. Since the complainant was logged into their Google account during the visit to the Website, Google may still have had the opportunity to obtain information about the logged-in user's visit to the Website. The fact that it does not appear from the complaint that no personalized ads have been displayed does not mean that Google cannot obtain information about the logged-in user's visit to the Website.

IMY finds, in light of the unique identifiers that can identify the browser or device, the possibility of tracing the individual through their Google account, the dynamic IP addresses, and the ability to combine these with additional data, that Dagens Industri's use of the Tool on a webpage constitutes processing of personal data.

2.3 Dagens Industri is the data controller for the processing

The data controller is, among other things, a legal entity that alone or jointly with others determines the purposes and means of processing personal data (Article 4.7 of the General Data Protection Regulation). The data processor is, among other things, a legal entity that processes personal data on behalf of the data controller (Article 4.8 of the General Data Protection Regulation).

The responses provided by Dagens Industri show that it has made the decision to implement the Tool on the Website. Furthermore, it is evident that Dagens Industri's purpose with the implementation of the tool has been for the company to analyze how the Website is used, and in particular to be able to track the usage of the Website over time.

IMY finds that Dagens Industri, by deciding to implement the Tool on the Website for the aforementioned purpose, has established the purposes and means of the collection and subsequent processing of these personal data. Dagens Industri is therefore the data controller for this processing.

²² See, for example, the Court of Justice of the European Union's judgment in *Latvijas Republikas Saeima* (Points de pénalité), C-439/19, EU:C:2021:504, paragraph 61, judgment in *Nowak*, C-434/16, EU:C:2017:994, paragraph 33, and judgment in *Rijkeboer*, C-553/07, EU:C:2009:293, paragraph 59. Page 18 of 27

2.4 Transfer of Personal Data to Third Countries

The investigation shows that the data collected via the Tool is stored by Google LLC in the USA. Thus, the personal data collected via the Tool is transferred to the USA. The question is therefore whether Dagens Industri's transfer of personal data to the USA is compatible with Article 44 of the General

Data Protection Regulation and has legal support in Chapter V.

2.4.1 Applicable Provisions, etc.

According to Article 44 of the General Data Protection Regulation, titled "General Principle for the Transfer of Data," the transfer of personal data that is being processed or is intended to be processed after being transferred to a third country – i.e., a country outside the EU/EEA – may only take place provided that the data controller and the data processor, subject to other provisions of the General Data Protection Regulation, meet the conditions in Chapter V. All provisions in the aforementioned chapter must be applied to ensure that the level of protection guaranteed by the General Data Protection Regulation is not undermined.

Chapter V of the General Data Protection Regulation contains tools that can be used for transfers to third countries to ensure a level of protection that is essentially equivalent to that guaranteed within the EU/EEA. This may include transfers based on a decision regarding an adequate level of protection (Article 45) and transfers subject to appropriate safeguards (Article 46). Additionally, there are exceptions for specific situations (Article 49). The Court of Justice of the European Union has invalidated the decision on an adequate level of protection that previously applied to the transfer of personal data to the USA. Since a decision on an adequate level of protection has been lacking since July 2020, transfers to the USA cannot be based on Article 45.

Article 46.1 stipulates, among other things, that in the absence of a decision in accordance with Article 45.3, a data controller or a data processor may only transfer personal data to a third country after having implemented appropriate safeguards, and on the condition that statutory rights for data subjects and effective remedies for data subjects are available. Article 46.2 c states that such appropriate safeguards may take the form of standard contractual clauses adopted by the Commission in accordance with the review procedure referred to in Article 93.2.

In the ruling of Schrems II, the Court of Justice of the European Union did not reject standard contractual clauses as transfer tools. However, the Court noted that they are not binding for authorities in the third country. The Court of Justice of the European Union stated that "[e]ven if there are situations where the recipient of such a transfer, depending on the legal situation and prevailing practices in the relevant third country, can guarantee the necessary protection of data solely on the basis of the standard contractual clauses, there are other situations in which the provisions of those clauses cannot be a sufficient means to effectively ensure the protection of the personal data transferred to the relevant third country." According to the Court of Justice of the European Union, this is "among other things..."

23 Commission Implementing Decision (EU) 2016/1250 of July 12, 2016, pursuant to the European Parliament and Council Directive 95/46/EC on whether an adequate level of protection is ensured by the Privacy Shield between the European Union and the United States and the Court of Justice of the European Union ruling in Facebook Ireland and Schrems (Schrems II), C-311/18, EU:C:2020:559.

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the case when the legislation in that third country allows the authorities in that third country to intervene in the rights of the registered individuals regarding this data."²⁴

The reason the Court of Justice of the European Union invalidated the decision on adequate protection level with the USA was due to how American intelligence services can access personal data.

According to the court, the conclusion of standard contractual clauses cannot in itself ensure a level of protection required under Article 44 of the General Data Protection Regulation, as the guarantees specified therein do not apply when such authorities request access. The Court of Justice therefore stated the following:

"It is thus clear that the standardized data protection clauses adopted by the Commission pursuant to

Article 46.2 c of the same regulation aim solely to provide the data controllers or their data processors established in the Union with contractual protection measures that are applied uniformly in all third countries and thus independently of the level of protection ensured in each of those countries. Since these standardized data protection clauses, given their nature, cannot lead to protective measures that go beyond a contractual obligation to ensure that the level of protection required under Union law is observed, it may be necessary, depending on the situation prevailing in a particular third country, for the data controller to take additional measures to ensure that the level of protection is observed.”²⁵ In the European Data Protection Board (EDPB) recommendations on the consequences of the ruling²⁶, it is clarified that if the assessment of legislation and practice in the third country indicates that the protection that the transfer tool is supposed to guarantee cannot be maintained in practice, the exporter, within the framework of its transfer, must generally either suspend the transfer or take appropriate additional protective measures. The EDPB states that “additional measures can only be considered effective in the sense referred to in the Court of Justice's ruling ‘Schrems II’ if and to the extent that they – alone or in combination – address the specific shortcomings identified in the assessment of the situation in the third country regarding its laws and practices applicable to the transfer.”²⁷

From the EDPB's recommendations, it is evident that such additional protective measures can be divided into three categories: contractual, organizational, and technical.²⁸

Regarding contractual measures, the EDPB states that such measures “[...] can complement and strengthen the protective measures provided by the transfer tool and relevant legislation in the third country [...]. Given that the contractual measures are of such a nature that they generally cannot bind the authorities in that third country since they are not parties to the agreement, these measures often need to be combined with other technical and organizational measures to provide the level of data protection required [...]”.²⁹

Regarding organizational measures, the EDPB emphasizes “[t]hat choosing and implementing one or more of these measures will not necessarily and systematically ensure that [a] transfer meets the fundamental equivalence standard that

24 Paragraphs 125-126.

25 Paragraph 133.

26 EDPB, Recommendations 01/2020 on measures that supplement transfer tools to ensure compliance with the EU level of protection of personal data, Version 2.0, adopted on June 18, 2021 (hereinafter “EDPB Recommendations 01/2020”).

27 EDPB Recommendations 01/2020, paragraph 75: IMY's translation.

28 EDPB Recommendations 01/2020, paragraph 52.

29 EDPB Recommendations 01/2020, paragraph 99; IMY's translation.

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is required under EU legislation. Depending on the specific circumstances surrounding the transfer and the assessment made of the third country's legislation, organizational measures are required to complement contractual and/or technical measures to ensure a level of protection for personal data that is essentially equivalent to that guaranteed within the EU/EEA.”³⁰

Regarding technical measures, the EDPB points out that “these measures will be particularly necessary when the legislation in that country imposes obligations on the importer that conflict with the guarantees in Article 46 of the data protection regulation's transfer tools and that may particularly infringe upon the contractual guarantee of essentially equivalent protection against access by authorities in that third country to these data.”³¹ The EDPB states that “the measures specified [in the Recommendations] are intended to ensure that access to the transferred data by public authorities in third countries does not infringe upon the appropriateness of the suitable protective measures in Article 46 of the data protection regulation's transfer tools. These measures would be necessary to guarantee

an essentially equivalent level of protection to that guaranteed within the EU/EEA, even if the access of public authorities is consistent with the legislation in the importer's country, where such access in practice goes beyond what is necessary and proportionate in a democratic society. The purpose of these measures is to prevent potentially unlawful access by preventing authorities from identifying the data subjects, drawing conclusions about them, identifying them in another context, or linking the transferred data to other datasets that may include online identifiers provided by the entities, applications, tools, and protocols used by data subjects in other contexts.”³²

2.4.2 Assessment of the Swedish Data Protection Authority

2.4.2.1 Applicable Transfer Tool

The investigation shows that Dagens Industri and Google have entered into standardized data protection clauses (standard contractual clauses) in the sense referred to in Article 46 for the transfer of personal data to the USA. These clauses are in line with those published by the European Commission in Decision 2010/87/EU and thus constitute a transfer tool under Chapter V of the data protection regulation.

2.4.2.2 Legislation and Situation in the Third Country

As indicated by the ruling in Schrems II, the use of standard contractual clauses may require additional protective measures as a complement. Therefore, an analysis of the legislation in the relevant third country needs to be conducted.

The IMY considers that the analysis already conducted by the Court of Justice of the European Union in the ruling in Schrems II, which pertains to similar circumstances, is relevant and current, and that it can thus serve as the basis for the assessment in this case without any further analysis of the legal situation in the USA needing to be conducted.

Google LLC, as the importer of the data to the USA, should be classified as a provider of electronic communication services in the sense referred to in 50 US Code § 1881 (b)(4). Google is therefore subject to monitoring by US intelligence services in accordance with 50 US § 1881a (“702 FISA”) and is thus obliged to provide the US government with personal data when 702 FISA is used.

30 EDPB's Recommendations 01/2020, paragraph 128; IMY's translation.

31 EDPB's Recommendations 01/2020, paragraph 77; IMY's translation.

32 EDPB's Recommendations 01/2020, paragraph 79; IMY's translation.

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The Court of Justice of the European Union stated in the judgment Schrems II that the American surveillance programs based on 702 FISA, Executive Order 12333 (hereinafter "E.O. 12333"), and Presidential Policy Directive 28 (hereinafter "PPD-28") in American legislation do not meet the minimum requirements under Union law according to the principle of proportionality. This means that the surveillance programs based on these provisions cannot be considered limited to what is strictly necessary. The Court also noted that the surveillance programs do not provide the data subjects with rights that can be asserted against American authorities in court, which means that these individuals do not have the right to an effective remedy. IMY notes against this background that the use of the European Commission's standard contractual clauses is not in itself sufficient to achieve an acceptable level of protection for the transferred personal data.

2.4.2.3 Additional Protective Measures Implemented by Google and Dagens Industri

The next question is whether Dagens Industri has taken sufficient additional protective measures. As the data controller and exporter of personal data, Dagens Industri is obliged to ensure compliance with the rules of the General Data Protection Regulation. This responsibility includes, among other things, assessing in each individual case when transferring personal data to third countries which additional protective measures should be used and to what extent, including evaluating whether the measures taken by the recipient (Google) and the exporter (Dagens Industri) collectively are sufficient to achieve

an acceptable level of protection.

2.4.2.3.1 Google's Additional Protective Measures

Google LLC, as the importer of personal data, has taken contractual, organizational, and technical measures to complement the standard contractual clauses. Google has described in a statement dated April 9, 2021, that the company has taken measures. The question is whether the additional protective measures taken by Dagens Industri and Google LLC are effective, in other words, whether they prevent American intelligence agencies from accessing the transferred personal data.

Regarding the legal and organizational measures, it can be noted that neither information to users of the Tool (such as Dagens Industri), the publication of a transparency report, nor a publicly available "government request handling policy" prevents or reduces the capabilities of American intelligence agencies to access personal data. Furthermore, it is not described what it means that Google LLC conducts a "thorough examination of each request" regarding the "legality" from American intelligence agencies. IMY notes that this does not affect the legality of such requests since, according to the Court of Justice of the European Union, they are not compliant with the requirements of EU data protection regulations.

Regarding the technical measures taken, it can be noted that neither Google LLC nor Dagens Industri has clarified how the described measures—such as protection of communication between Google's services, protection of data during transfer between data centers, protection of communication between users and websites, or "physical security"—prevent or reduce the capabilities of American intelligence agencies to gain access to the data under the American regulatory framework.

33 Point 184 and 192. Point 259 and subsequent.

34 Regardless of whether such a notification would even be permitted under American law.

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Regarding the encryption technology used—for example, for so-called "data at rest" in data centers, which Google LLC mentions as a technical measure—Google LLC, as the importer of personal data, still has an obligation to grant access to or transfer imported personal data that Google LLC controls, including any encryption keys required to make the data intelligible.³⁵ Thus, such a technical measure cannot be considered effective as long as Google LLC has the ability to access personal data in plaintext.

Concerning what Google LLC has stated about "to the extent that information for measurement in Google Analytics transferred by website owners constitutes personal data, they may be considered pseudonymized," it can be noted that universally unique identifiers (UUID) are not covered by the concept of pseudonymization in Article 4.5 of the Data Protection Regulation. Pseudonymization can be a privacy-enhancing technique, but the unique identifiers have, as described above, the specific purpose of distinguishing users and not of serving as protection. Furthermore, individuals can be identified through what has been stated above regarding the possibility of combining unique identifiers and other data (e.g., metadata from browsers or devices and the IP address) and the ability to link such information to a Google account for logged-in users.

Regarding Google's action concerning the anonymization of IP addresses in the form of truncation³⁶, it is not clear from Google's response whether this action occurs before the transfer, or if the entire IP address is transferred to the USA and truncated only after the transfer to the USA. From a technical perspective, it has thus not been demonstrated that there is no potential access to the entire IP address before the last octet is truncated.

As for the fact that Google LLC has configured the solution so that the JavaScript file is cached in the receiving terminal's application cache for two hours (which may imply a delay between the first and second call of up to two hours), this means that the calls may have different timestamps, which in itself could complicate the identification of which visitor made the unique call. However, IMY notes that

Dagens Industri cannot ensure that a delay of the calls actually occurs, partly because it is technically impossible to guarantee when (or if) a delay between the first and second call occurs, and because the control (activation) of caching is outside the company's control.

In this context, IMY concludes that the additional protective measures taken by Google are not effective, as they do not prevent U.S. intelligence agencies from accessing personal data or render such access ineffective.

2.4.2.3.2 Dagens Industri's Own Additional Protective Measures

Dagens Industri has stated that the company has taken additional protective measures beyond those taken by Google. According to Dagens Industri, these consist of the company having conducted extensive mapping of the lifecycle of personal data processed in the Tool and that the company masks the last octet of the IP address and hashes the value in the cookies on its own data servers (the transfer through the proxy server) before the data is transferred to Google.³⁷

35 See EDPB's Recommendations 01/2020, point 81.

36 Truncation of an IP address means that asterisks or zeros replace other digits in the last octet (the last digits in an IP address, a number between 0 and 255).

37 See above in the section regarding what the company has stated, under the heading "Additional Protective Measures Taken."

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However, IMY finds that these measures are not sufficient for the following reasons.

It is evident from the company's own information that two separate transfers of the individual's IP address occur to Google LLC – one through a call from the measurement tool "analytics.js" with the entire IP address exposed, and the other with truncation³⁸ of the last octet when measured data is transferred (and hashing of the cookie value).³⁹

Dagens Industri claims that what can be inferred from the first transfer (where the entire IP address is exposed) is merely which webpage the IP address has visited and that it is not possible to connect the IP address with the page view data, etc., that is measured at a later time on the Website. However, IMY notes that the transfer itself constitutes a transfer of personal data (the IP address), despite the protective measures taken.

Regarding the second transfer, it additionally contains further information about the visit to Dagens Industri's website (such as the visitor's device and the time of the visit), and the connection can thus be made with the IP address since the difference after truncation is merely that the last octet is masked, which for IP addresses means only 256 alternatives (i.e., a number between 0–255). Even though the masking of the last octet and "hashing" of the cookie value constitute privacy-enhancing measures, as they limit the scope of the data that authorities can access (in third countries), IMY notes that it is still possible to link the transferred data to other data that is also transferred to Google LLC.

Against this background, IMY concludes that the additional measures taken by the company, beyond the additional measures taken by Google, are also not sufficiently effective to prevent U.S. intelligence agencies from accessing personal data or rendering such access ineffective.

2.4.2.3.3 Conclusion of the Swedish Authority for Privacy Protection

IMY finds that the measures taken by Dagens Industri and Google, either individually or collectively, are not sufficiently effective to prevent U.S. intelligence agencies from accessing personal data or rendering such access ineffective.

In light of this, IMY finds that neither standard contractual clauses nor the other measures invoked by Dagens Industri can provide the support for the transfer as specified in Chapter V of the General Data Protection Regulation.

By means of this transfer of data, Dagens Industri therefore undermines the level of protection for personal data for data subjects guaranteed in Article 44 of the General Data Protection Regulation.

IMY therefore concludes that Dagens Industri Aktiebolag is in violation of Article 44 of the General Data Protection Regulation.

38 Truncation of an IP address means that asterisks or zeros replace other digits in the last octet (the last numbers in an IP address, a number between 0 and 255), which in itself can only be one of 256 alternatives. The effect of this measure is that it is still possible to distinguish the IP address from the other IP addresses (255 alternatives), as the IP address can be linked to other transferred data (e.g., information about the device and time of the visit) to a third country.

39 See above in section 1.3.17.1, illustration of data flows (p. 8 in the company's statement).

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3 Choice of Intervention

3.1 Legal Regulation

The Swedish Data Protection Authority (IMY) has a number of corrective powers available in the event of violations of the General Data Protection Regulation (GDPR) according to Article 58.2 a–j of the GDPR, including reprimands, orders, and administrative fines.

IMY shall impose administrative fines in addition to or instead of other corrective measures referred to in Article 58.2, depending on the circumstances of each individual case. Each supervisory authority shall ensure that the imposition of administrative fines in each individual case is effective, proportionate, and dissuasive. This is stated in Article 83.1 of the GDPR.

Article 83.2 of the GDPR specifies the factors to be considered when determining whether an administrative fine should be imposed, as well as when determining the amount of the fine. If it concerns a minor violation, IMY may, as indicated in Recital 148, issue a reprimand instead of imposing a fine according to Article 58.2 b of the Regulation. In the assessment, aggravating and mitigating circumstances in the case shall be taken into account, such as the nature, severity, and duration of the violation, as well as previous relevant violations.

According to Article 83.5 c of the GDPR, in the event of a violation of, among other things, Article 44 in accordance with 83.2, administrative fines of up to 20 million EUR or, if it concerns a company, up to 4% of the total global annual turnover in the preceding financial year shall be imposed, depending on which value is higher.

3.2 Should a Fine be Imposed?

IMY has found above that the transfers of personal data to the USA that occur via the Google Analytics tool and for which Dagens Industri is responsible violate Article 44 of the GDPR. Violations of that provision can, as stated above, lead to administrative fines. In this particular case, it concerns a serious violation that should normally lead to an administrative fine.

In assessing whether an administrative fine should be imposed in this case, it should be taken into account as an aggravating factor that the violation has occurred because Dagens Industri has transferred a large amount of personal data to a third country where the data cannot be guaranteed the level of protection provided in the EU/EEA. The processing has occurred systematically and over a longer period. After the Court of Justice of the European Union invalidated the Commission's decision on adequate protection in the USA on July 16, 2020, the conditions for transferring personal data to the USA changed. It has now been approximately 3 years since the judgment was issued, and the EDPB has during that time provided recommendations on the consequences of the judgment for public consultation on November 10, 2020, and in final form on June 18, 2021.

40 Commission Implementing Decision (EU) 2016/1250 of July 12, 2016, pursuant to the European Parliament and Council Directive 95/46/EC on whether an adequate level of protection is ensured by the Privacy Shield between the EU and the United States.

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In mitigation, it should be considered the special situation that has arisen after the judgment and the interpretation of the EDPB's recommendations, where there has been a gap after the transfer tool to the USA was invalidated by the Court of Justice of the European Union based on the Commission's previous decision. It should also be particularly noted that the investigation shows that Dagens Industri has conducted a serious analysis and mapping of the lifecycle of personal data in the Tool. Dagens Industri has also taken measures such as masking the last octet of the IP address (truncation) on its own data servers (the transfer through the proxy server) and hashing the value in the cookies before the data is transferred to Google. The company has also activated Google's measure "anonymization of IP addresses" through truncation. Dagens Industri has thus taken relatively extensive measures to try to limit the risks for the data subjects and to remedy the deficiencies. Dagens Industri has thereby also believed that they have succeeded, even though the measures have now proven to be ineffective in practice.

In a balanced assessment, IMY finds that there is reason in this case to refrain from imposing an administrative fine on Dagens Industri for the identified violation and to settle for an order to rectify the deficiency.

3.3 Other Interventions

The investigation shows that the protective measures for transfer invoked by Dagens Industri cannot support the transfer according to Chapter V of the GDPR. The transfer thus constitutes a violation of the Regulation. To ensure that the violation ceases, Dagens Industri shall be ordered under Article 58.2 d of the GDPR to ensure that the company's processing of personal data in the context of the use of the Google Analytics tool complies with Article 44 and other provisions of Chapter V. This shall particularly be done by Dagens Industri ceasing to use the version of the Google Analytics tool that was used on August 14, 2020, unless sufficient protective measures have been taken. The measures shall be implemented no later than one month after this decision has become final.

This decision has been made by the Director General Lena Lindgren Schelin after presentation by the lawyer Sandra Arvidsson. In the final handling, the Chief Legal Officer David Törngren, the Unit Manager Catharina Fernquist, and the IT and Information Security Specialist Mats Juhlén have also participated.

Lena Lindgren Schelin, 2023-06-30 (This is an electronic signature)

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4 Appeal Reference

4.1 How to Appeal

If you wish to appeal the decision, you must write to the Swedish Authority for Privacy Protection. In your letter, specify which decision you are appealing and the amendment you are requesting. The appeal must be received by the Swedish Authority for Privacy Protection no later than three weeks from the date you received notification of the decision. If the appeal is submitted in a timely manner, the Swedish Authority for Privacy Protection will forward it to the Administrative Court in Stockholm for examination.

You may email the appeal to the Swedish Authority for Privacy Protection if it does not contain any sensitive personal data or information that may be subject to confidentiality. The authority's contact details are provided on the first page of the decision.

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